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TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

July 20, 2026

CASE NUMBER

24STCV21264C

MOTIONS

Motion for Judgment on the Pleadings

MOVING PARTIES

Defendants Gabriel Pope and Skylar Vincent

OPPOSING PARTIES

Plaintiffs Cal26 Property Group,
LLC and Robert Gentino

MOTION

Defendants Gabriel

Pope and Skylar Vincent ("Defendants") move for judgment on the pleadings on the operative first amended complaint of Plaintiffs Cal26 Property Group, LLC ("Cal26 Property Group") and Robert Gentino (collectively, "Plaintiffs"). Plaintiffs oppose the motion.

ANALYSIS

A motion for judgment on the pleadings has the same function as a general demurrer but may be made after the time to demur has expired. (Code Civ. Proc., § 438, subd. (f).) "Like a demurrer, the grounds for the motion [for judgment on the pleadings] must appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Civic Partners Stockton, LLC v. Youssefi (2013) 218 Cal.App.4th 1005, 1013.) In ruling on a motion for judgment on the pleadings, "[a]ll allegations in the complaint and matters upon which judicial notice may be taken are assumed to be true." (Rippon v. Bowen (2008) 160 Cal.App.4th 1308, 1313.)

Defendants argue Cal26

Property Group fails to allege it has standing.

Defendants are incorrect. In this regard, Cal26 Property Group alleges it "is the assignee of all rights to the First through Fifth causes of action." (First Amended Complaint, p. 2.)

For pleading purposes, these allegations suffice. Defendants may obtain further information regarding Plaintiffs' claims by conducting appropriate discovery. (See, e.g., Khoury v. Maly's of Cal., Inc. (1993) 14 Cal.App.4th 612, 616 ["A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures"].)

Moreover, for

purposes of a judgment on the pleadings, when issues of fact are to be determined, the Court is confined to considering the four corners of the operative complaint; it must liberally construe allegations in that pleading; and it is to draw inferences favorable to the non-moving party. In this regard, the Court notes

Defendants have cited to materials, and alleged facts, which are outside of this boundary, and they have not sought judicial notice of material relative to any issue. Thus, to consider such matters, a

more developed record through discovery conducted down the line must be provided.

Defendants also

argue the litigation privilege bars the sixth, seventh, and eighth causes of action. The litigation privilege

“applies to any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that have some connection or logical relation to the action.” (Jacob

B. v. County of Shasta (2007) 40 Cal.4th 948, 955, internal quotations omitted.) The litigation privilege

applies “even though the publication is made outside the courtroom and no function of the court or its officers is involved.” (Silberg v. Anderson (1990) 50 Cal.3d 205, 212.)

As Defendants

point out, the sixth, seventh, and eighth causes of action are premised on communications between Plaintiffs and Defendants in connection with this litigation. Plaintiffs ignore this issue

in opposition to the motion and thereby have waived any argument the litigation privilege does not bar these causes of action.

(See Bell v. American Title Ins. Co. (1991) 226 Cal.App.3d 1589, 1602 [failure to oppose motion constitutes waiver].) Accordingly, the Court grants the motion for judgment on the pleadings on the sixth, seventh, and eighth causes of action without leave to amend.

Likewise, as

Plaintiffs ignore Defendants' argument Plaintiffs fail to allege the second and fourth causes of action for fraud with the requisite specificity, the Court grants the motion for judgment on the pleadings on the second and fourth causes of action without leave to amend. (See Wilhelm v. Pray, Price, Williams & Russell (1986) 186 Cal.App.3d 1324, 1331 [“general pleading of the legal conclusion of fraud is insufficient; and . . . every element of the cause of action for fraud must be alleged in full, factually and specifically, and the policy of liberal construction of pleading will not usually be invoked to sustain a pleading that is defective in any material respect”].)

CONCLUSION AND ORDER

Defendants' motion

for judgment on the pleadings as to the second, fourth, sixth, seventh, and eighth causes of action in the operative first amended complaint is granted without leave to amend. The motion for judgment on the pleadings is otherwise denied.

Defendants are

ordered to provide notice of the Court's ruling and to file proof of service of same.